# Mutual Non-Disclosure Agreement

## One-Page Edition · English Official Version

The full text of the English governing version, in one-page layout

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of _____ (the "Effective Date"), by and between:

Disclosing Party A: Easton Wood / OC 100 Marathon Club Inc.

Address: _____

and

Receiving Party B: _____ ("Company / Individual")

Address: _____

The parties wish to explore a potential business relationship with respect to the Project (as defined below), and in connection therewith each party may disclose Confidential Information to the other. The parties agree as follows:

### 1. Definition of Confidential Information.

"Confidential Information" means any non-public information disclosed by one party (the "Disclosing Party") to the other party (the "Receiving Party"), whether orally, visually, in writing, or in electronic form, that is designated as confidential or that, given the nature of the information or the circumstances of disclosure, reasonably should be understood to be confidential. Confidential Information includes, without limitation: the business concept, creative designs, architectural and site concepts, business plans, financial models and projections, market analyses, partnership and sponsorship strategies, and any other materials relating to the proposed soccer-themed resort hotel and sports recovery facility at Irvine Great Park, California (the "Project").

### 2. Exclusions.

Confidential Information does not include information that: (a) is or becomes publicly available without breach of this Agreement; (b) was already known to the Receiving Party without a duty of confidentiality, as evidenced in writing; (c) is independently developed by the Receiving Party without use of or reference to Confidential Information; or (d) is rightfully received from a third party without a duty of confidentiality.

### 3. Obligations of the Receiving Party.

The Receiving Party shall: (a) hold all Confidential Information in strict confidence; (b) not disclose Confidential Information to any person except its officers, directors, employees, advisors, and potential financing sources who have a need to know and who are bound by confidentiality obligations at least as protective as those herein; (c) not use Confidential Information for any purpose other than evaluating a potential business relationship with respect to the Project (the "Purpose"); and (d) protect Confidential Information with at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

### 4. Required Disclosure.

If the Receiving Party is required by law, regulation, or court order to disclose Confidential Information, it shall promptly notify the Disclosing Party (to the extent legally permitted) so the Disclosing Party may seek a protective order, and shall disclose only the minimum information legally required.

### 5. No License; No Obligation.

Nothing in this Agreement grants any intellectual property rights or license, nor obligates either party to enter into any further agreement or business relationship. All Confidential Information remains the property of the Disclosing Party.

### 6. Term.

This Agreement takes effect on the Effective Date and remains in effect for two (2) years. The obligations of confidentiality under Section 3 survive for three (3) years after disclosure of the relevant Confidential Information.

### 7. Return or Destruction.

Upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy all Confidential Information and certify destruction in writing, except for archival copies required by law or bona fide record-keeping policies.

### 8. Remedies.

The parties acknowledge that unauthorized disclosure may cause irreparable harm for which monetary damages would be inadequate, and the Disclosing Party shall be entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

### 9. No Warranty.

All Confidential Information is provided "as is" without any warranty, express or implied.

### 10. General.

This Agreement constitutes the entire agreement regarding the subject matter herein and may only be amended in writing signed by both parties. Neither party may assign this Agreement without the other party's prior written consent. If any provision is held unenforceable, the remaining provisions remain in full force. This Agreement shall be governed by the laws of the State of California, without regard to conflict-of-law principles. This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

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Party A (Disclosing Party): Easton Wood / OC 100 Marathon Club Inc.

Signature: _____ Date: _____

Party B (Receiving Party): _____

Signature: _____ Date: _____

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